

24STCV00406 24STCV00406

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-08-05

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Case Number: 24STCV00406 Hearing Date: August 5, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

AUDREY BEST,

Plaintiff,

vs.

GEMMA R CAPISPISAN, et al.,

Defendants.

Case No.:

24STCV00406

Hearing Date:

August

5, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE] ORDER RE:

PLAINTIFF'S
REQUEST FOR DEFAULT JUDGMENT

Plaintiff Audrey Best

("Plaintiff") requests entry of default judgment against Defendant Gemma R Capispisan ("Defendant"). Plaintiff seeks judgment in the total amount of \$27,785.00, comprising \$9,185.00 in special damages, \$18,000.00 in general damages, and \$600.00 in costs.

Most recently, the Court denied Plaintiff's request for default judgment on March 16, 2026 due to three errors. Plaintiff corrected two of them. However, Plaintiff did not file evidence that she served a statement of damages on Defendant.

"[A] trial court's jurisdiction to grant relief on a default judgment [is limited] to the amount stated in the complaint." (Dhawan v. Biring (2015) 241 Cal.App.4th 963, 968.)
"The amount of the default judgment 'cannot exceed that demanded in the complaint, in the statement required by Section 425.11, or in the statement provided for by Section 425.115.'" (Ibid., citing Code Civ. Proc., § 580, subd. (a).) "The statement required by section 425.11 is a statement of damages served separately on a defendant in 'an action to recover damages for personal injury or wrongful death.'" (Id. at pp. 968-969, citing Code Civ. Proc., § 425.11, subd. (b).)

Because Plaintiff's injuries arise from a car accident, Code of Civil Procedure section 425.11, subdivision (b), states that "[w]hen a complaint is filed in an action to recover damages for personal injury or wrongful death, the defendant may at any time request a statement setting forth the nature and amount of damages being sought." "If no request is made for the statement referred to in subdivision (b), the plaintiff shall serve the statement on the defendant before a default may be taken." (Code Civ. Proc., § 425.11, subd. (c).) Plaintiff has not proffered evidence to the Court that she served a statement of damages on Defendant. Plaintiff is

required to do so, in compliance with Code of Civil Procedure section 425.11, subdivision (d)(1). (See Code Civ. Proc., § 425.11, subd. (d)(1) ["If a party has not appeared in the action, the statement shall be served in the same manner as a summons."].)

Based on the foregoing, Plaintiff's request for default judgment is DENIED without prejudice. The Court notes that the statute requires that the statement of damages be served before default is taken. Accordingly, unless Plaintiff dismisses the case, Plaintiff is ordered to serve Defendant with the statement of damages by _____. Within _____ days of the entry of default, Plaintiff is ordered to file a new default judgment package. The hearing on the default judgment package is set on _____, 2026 at 10:00 a.m. in Dept. 508. Courtesy copies of the default judgment package must be delivered to Dept. 508 concurrently with filing.

DATED: August
5, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court